



CHAPTER 61.

An Act to extend certain temporary provisions of the Milk Acts, 1934 to 1937; to release milk marketing boards and the Government of Northern Ireland from certain obligations under those Acts; and for purposes connected with the matters aforesaid. [29th July 1938.] A.D. 1938.

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. In sections one, two and three of the principal Act (which provide for the making of payments out of the Exchequer in respect of milk sold or used for manufacture before the beginning of October nineteen hundred and thirty-eight) for the words "the fifty-four consecutive months falling between the end of March nineteen hundred and thirty-four and the beginning of October nineteen hundred and thirty-eight" (wherever those words occur) there shall be substituted the words "the sixty-six consecutive months falling between the end of March nineteen hundred and thirty-four and the beginning of October nineteen hundred and thirty-nine".

Extension of period for Exchequer payments in connection with milk sold or used for manufacture.

2. In subsection (1) of section eleven of the principal Act (which enables the Minister to pay to milk marketing boards, out of moneys provided by Parliament, sums not exceeding two million pounds in all in respect of

Extension of period, and increase of amount, of

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Exchequer payments in connection with schemes for increasing the demand for milk.

expenses incurred by such boards in giving effect to arrangements for increasing the demand for milk, being expenses which appear to the Minister to be attributable to any time before the first day of October nineteen hundred and thirty-eight) for the words "nineteen hundred and thirty-eight" there shall be substituted the words "nineteen hundred and thirty-nine", and for the words "two million" there shall be substituted the words "two million seven hundred and fifty thousand".

Release of milk marketing boards and Government of Northern Ireland from obligation to make payments to Exchequer.

3.—(1) In section five, and subsection (2) of section six, of the principal Act (which respectively require milk marketing boards and the Government of Northern Ireland to make to the Exchequer, in certain circumstances, payments in respect of milk used for manufacture before the beginning of October nineteen hundred and forty) for the words "the fifty-four consecutive months falling between the end of March nineteen hundred and thirty-six and the beginning of October nineteen hundred and forty" (wherever those words occur) there shall be substituted the words "the eighteen consecutive months falling between the end of March nineteen hundred and thirty-six and the beginning of October nineteen hundred and thirty-seven".

(2) This section shall be deemed to have come into operation on the first day of October nineteen hundred and thirty-seven.

Supplemental and consequential provisions.

24 & 25 Geo. 5, c. 51.
26 Geo. 5. &
1 Edw. 8. c. 9.
1 Edw. 8. &
1 Geo. 6. c. 66.

4.—(1) In this Act the expression "the principal Act" means the Milk Act, 1934, as amended by the Milk (Extension of Temporary Provisions) Act, 1936, and by the Milk (Amendment) Act, 1937.

(2) The amendments set out in the Schedule to this Act, being amendments consequential on the preceding provisions of this Act, shall be made in the enactments mentioned in that Schedule.

Short title, construction and citation.

5. This Act may be cited as the Milk (Extension and Amendment) Act, 1938, and shall be construed as one with the principal Act; and the Milk Acts, 1934 to 1937, and this Act may be cited together as the Milk Acts, 1934 to 1938.

SCHEDULE.

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Section 1.

Whereas the Government of the Turkish Republic have adopted an economic programme, which was approved by the National Assembly of the Turkish Republic on the twenty-third day of December, nineteen hundred and thirty-seven, whereby provision is made for substantial increases in the amount and value of the mineral and certain other products to be exported from the Turkish Republic in future years :

And whereas the Trade and Clearing Agreement, signed on the second day of September, nineteen hundred and thirty-six, between the Government of the United Kingdom of Great Britain and Northern Ireland and the Government of the Turkish Republic, has been supplemented by an Agreement signed on the twenty-seventh day of May, nineteen hundred and thirty-eight, providing in Article 4 (2) (iv) (E) thereof for payments to be made to the Government of the United Kingdom, out of the receipts of United Kingdom companies known as the Anglo-Turkish Comptoir, Limited, and Anglo-Turkish Commodities, Limited, in respect of credits granted by that Government to the Government of the Turkish Republic for the purchase in the United Kingdom of material necessary for the defence of Turkey :

Now, therefore, with a view to facilitating such purchases, the Government of the United Kingdom of Great Britain and Northern Ireland and the Government of the Turkish Republic have agreed, subject to confirmation by the Parliament of the United Kingdom and by the National Assembly of the Turkish Republic, as follows :—

ARTICLE 1.

The Government of the United Kingdom undertake to advance by way of loan to the Government of the Turkish Republic such sums, not exceeding in the aggregate six million pounds sterling, as may be payable by the Government of the Turkish Republic under any contracts concluded by that Government with the approval of the Government of the United Kingdom for the purchase in the United Kingdom of material necessary for the defence of Turkey.

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ARTICLE 2.

(1) There shall be added to each advance, made in accordance with Article 1 of this Agreement, interest, compounded half-yearly, at a rate of one per cent. per annum above the Bank of England discount rate in force from time to time or at a rate of three per cent. per annum, whichever is the greater, from the date on which each such advance is made until the date on which it is repaid or until the first day of January, nineteen hundred and forty-three, whichever date is the earlier, and thereafter at such rate (hereinafter referred to as the "certified rate") not being less than three per cent. per annum as the Lords Commissioners of the Treasury of the United Kingdom shall certify to be the appropriate rate on the first day of January, nineteen hundred and forty-three, for a loan of similar term guaranteed by the Government of the United Kingdom.

(2) The total amount of the advances, together with the interest thereon, unpaid on the first day of January, nineteen hundred and fifty-two (hereinafter referred to as the "principal sum"), shall be repaid by the Government of the Turkish Republic to the Government of the United Kingdom in pounds sterling by means of twenty equal half-yearly instalments, payable on the first day of July and the first day of January, of such amount as will secure the repayment by the first day of January, nineteen hundred and sixty-two, of the principal sum, together with interest on the amount thereof from time to time outstanding at the certified rate.

ARTICLE 3.

After the first day of January, nineteen hundred and fifty-two, the Government of the Turkish Republic shall have the option of discharging in whole or in part its obligations to pay instalments as provided in the preceding article by the repayment to the Government of the United Kingdom on the first day of January or on the first day of July of any year in pounds sterling of the principal sum or any part thereof then outstanding, and after any such repayment of a part of the principal sum the subsequent instalments shall be proportionately reduced.

ARTICLE 4.

The present Agreement shall be ratified and the instruments of ratification shall be exchanged at Angora. The present Agreement shall enter into force on the date of the exchange of ratifications.

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CONSEQUENTIAL PROVISIONS.

Section 4.

1. In subsection (2) of section seven of the principal Act, for the word "fifty-four" there shall be substituted the word "eighteen" and for the words "nineteen hundred and forty" there shall be substituted the words "nineteen hundred and thirty-seven."

2. In subsection (4) of the said section seven, for the words "nineteen hundred and forty" there shall be substituted the words "nineteen hundred and thirty-nine".

3. Subsections (2) and (3) of section eight of the principal Act shall cease to have effect.

4. In subsection (5) of section five of the Milk (Amendment) Act, 1937, for the words "nineteen hundred and forty" there shall be substituted the words "nineteen hundred and thirty-nine".

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FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
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